

SENATE No. 836

The Commonwealth of Massachusetts

PRESENTED BY:

John C. Velis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve outcomes for persons with limb loss and limb difference.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/29/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>4/16/2025</i>

SENATE No. 836

By Mr. Velis, a petition (accompanied by bill, Senate, No. 836) of John C. Velis and Joanne M. Comerford for legislation to authorize insurance coverage for prosthetic devices and orthotic devices. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4096 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve outcomes for persons with limb loss and limb difference.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 17I of chapter 32A of the General Laws, as so appearing in the
2 2022 Official Edition, is hereby amended by striking out subsection (b) and inserting in place
3 thereof the following subsection:-

4 (b) For the purposes of this section the following words shall, unless the context clearly
5 requires otherwise, have the following meanings:

6 “Orthosis”, a device: (i) used to support, align, correct or prevent deformities of the body,
7 which may be used to eliminate, control or assist motion at a joint or body part; and (ii)
8 appropriately used in a person’s home or any setting in which normal life activities take place in
9 the community.

“Prosthetic device”, an artificial limb device to replace, in whole or in part, an arm or leg including a device that is designed exclusively for athletic purposes.

SECTION 2. Said section 17I of said chapter 32A, as so appearing, is hereby further amended by adding the following subsection:-

(g) The commission shall provide coverage for prosthetic devices and orthotic devices, including those designed, custom-built or fitted for a specific enrollee, for the performance of physical activities or for an athletic purpose, as applicable, to maximize the enrollee’s ability to ambulate, run, bike and swim and to maximize upper limb function. The coverage required pursuant to this subsection shall include the repair or replacement of a prosthetic or orthotic device for the performance of physical activities or for an athletic purpose.

SECTION 3. Chapter 118E of the General Laws, as so appearing, is hereby amended by inserting after section 10Q the following section:-

10R. (a) For the purposes of this section the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Orthotic device”, a device: (i) used to support, align, correct or prevent deformities of the body, which may be used to eliminate, control or assist motion at a joint or body part; and (ii) appropriately used in a person’s home or any setting in which normal life activities take place in the community.

“Prosthetic device”, an artificial limb device to replace, in whole or in part, an arm or leg including a device that is designed exclusively for athletic purposes.

(b) The division shall provide coverage for prosthetic and orthotic devices including the repair or replacement of prosthetic or orthotic devices to eligible MassHealth members under the same terms and conditions that apply to other durable medical equipment. The coverage required by this section shall be subject to the terms and conditions applicable to other benefits.

(c) The division shall provide coverage for prosthetic devices and orthotic devices, including those designed, custom-built or fitted for a specific enrollee, for the performance of physical activities or for an athletic purpose, as applicable, to maximize the enrollee's ability to ambulate, run, bike and swim and to maximize upper limb function. The coverage required pursuant to this subsection shall include the repair or replacement of a prosthetic or orthotic device for the performance of physical activities or for an athletic purpose.

(d) Eligible MassHealth members shall be required to provide a written prescription signed by a licensed physician or an independent nurse practitioner. The prescription must be written on the prescriber's prescription form and must include the following information:

(i) the member's name and address;

(ii) the member's MassHealth identification number;

(iii) specific identification of the prescribed item;

(iv) medical justification for the use of the item, including the member's diagnosis;

(v) the prescriber's address and telephone number; and

(vi) the date on which the prescription was signed by the prescriber.

SECTION 4. Section 47Z of chapter 175 of the General Laws, as so appearing, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsection:-

(b) For the purposes of this section the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Orthosis”, a device: (i) used to support, align, correct or prevent deformities of the body, which may be used to eliminate, control or assist motion at a joint or body part; and (ii) appropriately used in a person’s home or any setting in which normal life activities take place in the community.

“Prosthetic device”, an artificial limb device to replace, in whole or in part, an arm or leg including a device that is designed exclusively for athletic purposes.

SECTION 5. Said section 47Z of said chapter 175, as so appearing, is hereby further amended by adding the following subsection:-

(h) Any such policy shall provide coverage for prosthetic devices and orthoses, including those designed, custom-built or fitted for a specific enrollee, for the performance of physical activities or for an athletic purpose, as applicable, to maximize the enrollee’s ability to ambulate, run, bike and swim and to maximize upper limb function. The coverage required pursuant to this subsection shall include the repair or replacement of a prosthetic or orthotic device for the performance of physical activities or for an athletic purpose.

SECTION 6. Section 8AA of chapter 176A of the General Laws, as so appearing, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsection:-

(b) For the purposes of this section the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Orthosis”, a device: (i) used to support, align, correct or prevent deformities of the body, which may be used to eliminate, control or assist motion at a joint or body part; and (ii) appropriately used in a person’s home or any setting in which normal life activities take place in the community.

“Prosthetic device”, an artificial limb device to replace, in whole or in part, an arm or leg including a device that is designed exclusively for athletic purposes.

SECTION 7. Said section 8AA of said chapter 176A, as so appearing, is hereby further amended by adding the following subsection:-

(h) Any such contract shall be required to provide coverage for prosthetic devices and orthotic devices, including those designed, custom-built or fitted for a specific enrollee, for the performance of physical activities or for an athletic purpose, as applicable, to maximize the enrollee’s ability to ambulate, run, bike and swim and to maximize upper limb function. The coverage required pursuant to this subsection shall include the repair or replacement of a prosthetic or orthotic device for the performance of physical activities or for an athletic purpose.

SECTION 8. Section 4AA of chapter 176B of the General Laws, as so appearing, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsection:-

(b) For the purposes of this section the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Orthosis”, a device: (i) used to support, align, correct or prevent deformities of the body, which may be used to eliminate, control or assist motion at a joint or body part; and (ii) appropriately used in a person’s home or any setting in which normal life activities take place in the community.

“Prosthetic device”, an artificial limb device to replace, in whole or in part, an arm or leg including a device that is designed exclusively for athletic purposes.

SECTION 9. Said section 4AA of said chapter 176B, as so appearing, is hereby further amended by adding the following subsection:-

(h) Any such certificate shall be required to provide coverage for prosthetic devices and orthotic devices, including those designed, custom-built or fitted for a specific enrollee, for the performance of physical activities or for an athletic purpose, as applicable, to maximize the enrollee’s ability to ambulate, run, bike and swim and to maximize upper limb function. The coverage required pursuant to this subsection shall include the repair or replacement of a prosthetic or orthotic device for the performance of physical activities or for an athletic purpose.

SECTION 10. Section 4S of chapter 176G of the General Laws, as so appearing, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsection:-

(b) For the purposes of this section the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Orthosis”, a device: (i) used to support, align, correct or prevent deformities of the body, which may be used to eliminate, control or assist motion at a joint or body part; and (ii)

112 appropriately used in a person's home or any setting in which normal life activities take place in
113 the community.

114 "Prosthetic device", an artificial limb device to replace, in whole or in part, an arm or leg
115 including a device that is designed exclusively for athletic purposes.

116 SECTION 11. Said section 4S of said chapter 176G, as so appearing, is hereby further
117 amended by adding the following subsection:-

118 (h) A health maintenance contract shall be required to provide coverage for prosthetic
119 devices and orthotic devices, including those designed, custom-built or fitted for a specific
120 enrollee, for the performance of physical activities or for an athletic purpose, as applicable, to
121 maximize the enrollee's ability to ambulate, run, bike and swim and to maximize upper limb
122 function. The coverage required pursuant to this subsection shall include the repair or
123 replacement of a prosthetic or orthotic device for the performance of physical activities or for an
124 athletic purpose.